

during the coverture only. But in all cases where the power of anticipation is restrained, the feme covert can make no disposition of the property, except as to the * annual produce which has actually become due (*a*). [*25] If a settlement be *fraudulently* procured from the wife by a husband by virtue of her separate use, it may be set aside (*b*).

9. **33 & 34 Vict. c. 93.** — The Married Women's Property Act, 1870 (*c*), enacted by sect. 1, that *wages and earnings* made by a married woman separately from her husband after the date of the Act (9th of Aug. 1870), were to be deemed settled to her separate use; and, by sect. 7, that where a woman married after the date of the Act was entitled to any personal property as *next of kin*, or to any sum not exceeding 200*l.*, under any *deed* or *will*, it should belong to her for her separate use; and, by the next section, that "rents and profits" of any real estate descending upon such married woman as *heiress*, should also belong to her for her separate use.

[**45 & 46 Vict. c. 75.** — This Act has been repealed and its place supplied by the Married Women's Property Act, 1882 (*d*), which makes all property acquired after the commencement of the Act (1st of January, 1883), by women married before that date, and also all the property of women married after that date, their separate property.]

10. **Infants.** — If an *Infant* before the Fines and Recoveries Act had levied a fine or suffered a recovery, he might also have declared the uses (*e*), and unless the fine or recovery had been reversed by him during his nonage he had been bound by the declaration (*f*), but deeds have now been substituted for fines and recoveries, and every deed of an infant, whether under the Act or independent of it, either is void or may be avoided.

[(*a*) See now 44 & 45 Vic. c. 41. s. 39, under which a married woman with the consent of the Court may bind her interest notwithstanding a restraint on alienation.]

(*b*) *Knight v. Knight*, 11 Jur. N. S. 617.

(*c*) 33 & 34 Vic. c. 93.

[(*d*) 45 & 46 Vic. c. 75; see as to these acts *post*, Chap. XXVIII. sect. 6.]

(*e*) *Gilb. on Uses*, 41, 245, 250.

(*f*) *Gilb. on Uses*, 246.